

CONSTITUTIONAL LAW NOTES

Nature of the Constitution and Necessity to Study Constitutional History

The constitution is a set of rules expressing the needs and aspirations of the people. It is a legal and normative framework that regulates and governs a country. It often addresses several aspects including the relations between the people and their structures of government and the relationship between various organs of government. It is often considered the supreme law of the land such that any other law (or custom), which is inconsistent with that law or custom is to the extent of its inconsistency treated as null and void, and the supreme law shall prevail. In legal theory, the constitution has been described as the grand norm and that all other laws derive their validity from this supreme norm.

Why we study constitutional history

We study constitutional history because we want to look at how common society evolved especially as regards its structures of government and the body of laws that have existed over a period of time. Further in order to assess the present, we need to look at our past, learn from the failures and successes and be able to provide reform for the future. The necessity of studying constitutional history is in fact apparent from the preamble to the 1995 constitution which provides *inter alia*, recalling our history which has been characterized by political and constitutional instability committed to building a better future by establishing a socio-economic and political structure through a popular and durable national constitution based on principles of unity, peace, equality, democracy, freedom, social justice and progress.

Since all laws derive from the constitution as the fundamental law, it is necessary to examine the manner in which the constitution is itself derived and enacted.

We study constitutional history because the concepts and principles that are central to constitutional law for instance separation of powers, independence of the judiciary, parliamentary sovereignty, human rights can only be appreciated against their origins in the Anglo-American tradition and their evolution and appreciation in the history of Uganda as a modern state.

Origins of the Ideas of the Constitution

The ideas of the constitution in the various forms have their origins traceable as early as the antiquity, through the medieval era in Europe to the political thinking and events of the 17th and 18th century. In the period of antiquity ancient Greece with its scholars such as Aristotle, Socrates and Plato gave us the idea of modern state and government. The city – state (polis) was in Aristotle's view to be of such a size that allowed participation of all citizens in government and thus the concept of direct democracy is no longer possible in modern large states and has been replaced by the concept of representative democracy.

Furthermore, in the open life of market squares, democratic ideas of freedom of assembly and association expression and conscience and equality evolved. Ancient Rome gave birth to several constitutional ideas including that of the modern parliament and perhaps more significantly the idea of citizenship by defining who was a citizen of Rome and the duties and rights that attached to citizenship.

The medieval era in Europe was essentially a feudal one characterized by feudal lords and noblemen and merchants and serfs and was basically founded on agriculture and trade. It was a period of absolutism in the power of the noblemen and feudal lords over the lives and liberties of serfs as well as taxation of trade. The influence of Christianity during the period also saw the conflict between church and the state. During this period, there were developments to restrain the absolutism in the powers of noblemen and feudal lords.

One of these developments occurred in the 13th century in England in 1215 in the form of **Magna Carta**, which is often recognized as the first document in the process of establishment of constitutional states in Europe. It contains several clauses but the most significant were.

1. The right of the individual to trial by the jury
2. The writ of *Habeas Corpus*.

These two clauses sought to restrain the power of the noblemen and feudal lords to arbitrarily detain people by requiring a trial by jury, the Magna Carta gave birth

to the modern concept of due process or the right to a fair trial. On the other hand, by introducing the *writ of Habeas Corpus*, it guaranteed the right to personal liberty.

Evolution of a Constitutional State in Uganda

The scramble for Africa, which pitted the major European powers of the time against each other, was eventually settled through an international conference in Berlin in 1884. Prior to the Berlin conference, the powers had nonetheless already secured spheres of influence through the activities of missionaries, explorers and chartered companies and the conference only served to give affirmation to the demarcation of territories.

In E. Africa, the source of the Nile and the economic as well as strategic interests had already fueled colonial rivalry. The rivalry in Uganda was however on the outset in the character of religion and whose intensities would threaten social order within the territory particularly Buganda. The protestant and catholic missionary groups were engaged in a religious rivalry, which defined the politics and the balance of power between Britain and France. The religious group that emerged dominant was the Protestants and has since remained a dominant force in the political evolution of the colonial and postcolonial state in Uganda.

The religious factor has permeated the political life (in particular political parties) as well as socio-economic aspects (e.g., schools, hospitals etc.) of Uganda's history even up to the present day. It is to be noted that the Amin influence itself gave birth to the minority religion of Islam and which in the Muslims were to have a dominant role. It's therefore evident that from the very beginning of the emergence of Uganda as a constitution/state religion has permeated the socio-economic and political digest of Uganda and have since been inter- related.

The religious factor was in its earliest from prominent in the attempt to raise counts as well as wining favors of the Kabaka in Buganda. Eventually after the settlement of religious conferences in Buganda and after a brief period of the administration of the Imperial British East Africa Company and the subduing of Bunyoro's Kabalega and Buganda's Mwanga. The British flag was erected in Uganda for the first time on 1st April, 1893 at Fort Lugard, Old Kampala hill. The protectorate was declared a year later and between 1894 and 1900, the British consolidated

their dominion. In 1900, the British entered into an agreement with Buganda called the (B) Uganda Agreement whose significance was to pervade Uganda's colonial and post-independence periods in both political and constitutional terms.

The 1900 Agreement is largely significant to a number of respects;

1. It was the first of its kind in Uganda and consequently led to other agreements with kingdom areas such as Toro (1900), Ankole (1901 and 1941) and Bunyoro (1933 and 1937). In the latter part of the colonial period, another agreement would be concluded with Buganda in 1955.
2. It introduced indirect rule as a policy of colonial administration as it established and confirmed British over rule over Buganda with the Kabaka as the political ruler although in fact relegated to a status of a puppet.
3. It tended to give Buganda a privileged status in comparison to the other parts of the protectorate. This was in spite of provisions to the contrary.
4. It confirmed the territory and boundaries of Buganda as a kingdom.
5. It introduced the first instances of formal political government and thus it is often regarded as the first constitutional instrument in Uganda's instrument.

The 1900 Buganda Agreement, its Provisions and their Significance.

The Buganda Agreement was signed on 10th March 1900 between Sir Harry Johnston as His Majesty's special commissioner and the regents (and chiefs) including sir Appollo Kaggwa, Stansilas Mugwanya and Nuwa Mbogo on behalf of the infant king Chwa II.

The Agreement contained 22 clauses and the majority of which were to be of profound significance of Buganda in particular and the protectorate of Uganda as whole.

Article 1 of the agreement demarcated the boundaries and laid out the territory of the kingdom of Buganda. In so doing, it established the geographical, political and administrative jurisdiction of the kingdom.

This had a number of ramifications to wit;

1. It placed a restraint on the expansionist tendencies of Buganda by clearly defining the extent of its territory.
2. It defined the extent to which the jurisdiction of the Kabaka's government went in terms of legislative, judicial, political and administrative competence.

Kazaraine v The Lukiiko [1963] E.A 472, highlights some of the problems of jurisdiction.

Article 9 which laid out the administrative units /counties of Buganda. The agreement confirmed the kingdom as the primary entry in Uganda for the control of the rest of the protectorate territory. It is significant that within the boundary demarcated was territory which belonged to Bunyoro and had been given to Buganda by the colonial government for its assistance to the defeat and pacification of Bunyoro.

This territory consisting of 7 of the counties of Bunyoro and remained a contentious issue particularly between Buganda and Bunyoro throughout the political and constitutional existence of the protectorate and the immediate post- independent Uganda. The lost counties issue would be reflected on a number of events, judicial decisions and constitutional developments including.

1. The signing of the 1933 and 1937 Bunyoro Agreement where Bunyoro raised the question of the return of its territories.
2. The Lancaster and Marlborough conferences in 1961 and 1962, Bunyoro raised the issue and the Morrison Commission was formed.
3. The Kazaraine case in 1963.
4. 1964 referendum on lost counties

5. *Kabaka's Government v AG of Uganda (1964)* (Challenged the constitutionality of the referendum)

6. Constitution of Uganda Amendment Act No.36/1964.

Article 2 provided that the Kabaka and the Chiefs of Buganda agreed to forfeit the collection of tribute from neighbouring provinces in favour of his majesty's government.

In this provision and others, the agreement recognized the transfer of economic rights as an objective of the colonial state (cross reference with article 4, 9, 12, 15, 16 and 17).

Article 3 stipulated that Buganda would rank as a province of equal standing with any of the other provinces in the protectorate (to which it may be divided). Refer to article 1 of the 1902 Order in Council. The intention of article 5 was to ensure that Buganda did not play any special or privileged status in the protectorate in comparison to the other parts or provinces while this was latter of the agreement, the spirit of it was to in fact give Buganda an enhanced position which would eventually lead to struggles and conflicts between Buganda and the rest of Uganda which characterized the protectorate and immediate post- independent periods. Buganda became involved in struggles to enhance its position or even to assert its independence and these would become more apparent in the period leading to independence and the post-independence period.

- a) 1953 – 55 Kabaka crisis.
- b) The 1955 Buganda Agreement (gave Buganda a format of electing representatives to the Leg co.)
- c) The 1958 memorandum by Buganda to her Majesty's government.
- d) 1958 – 1991, boycott of Leg co elections.
- e) *Katiikiro of Buganda v Ag. Of Uganda* [1959] E. A 38.
- f) Lancaster and Marlborough conference 1961 and 1962.

Article 4 stipulated that the revenue of Buganda kingdom that was collected would be merged with the general revenue of the protectorate. The implications of this provision, was to undermine the economic independence of the Kabaka

and his kingdom and is one of the provisions in the Agreement that ceded economic power to the colonial administration.

See AG v Kabaka's Government [1965] E.A 305

Article 5 stipulated that the laws made for the general government of the protectorate were applicable to Buganda except where they were in conflict with the terms of the agreement in which case the terms of the agreement were to prevail. The significance of this article lies in the fact that it laid down the law applicable as between the protectorate laws and the agreement provisions. It was largely designed to appease the kingdom in giving the impression of the supremacy of the terms of the agreement, but this would eventually turn out to be an empty gesture as it did not stop the colonial administration from overriding the terms of the agreement. When it suited the administration and several cases would later demonstrate this fact.

See

R. v Besweri Kiwanuka (1937)

Mukwamba v Mukubora (1954)

Nasanairi Kibuuka v Bartie Smith (1908)

Katozi v Kanizi (1907).

Article 6: Stipulated that His Majesty's government would recognize the existence of the Kabaka and give him protection, the Kabaka, chiefs and people of Buganda would conform to the laws and cooperate with the colonial government. This article is the crux of the entire agreement as it dealt with the essential elements of the imposition of colonial rule in Buganda.

1. Indirect rule between the Kabaka and the native ruler of his people.
2. Subordination of the kingdom to the authority and over rule of the colonial administration.
3. The failure to cooperate was to result in withdrawal of protection and recognition.

Mukwamba v Mukubira 1954: Issue related to legality of the withdrawal of recognition

of the Kabaka resulting in his deportation.

SIKIA
Low

There are other significant aspects to Article 6 including:

1. It attempted to address the issue of succession to the Kabakaship in Buganda by placing the duty upon the lukiiko to nominate and elect a successor. Although the colonial government would have the final say on who eventually became the Kabaka.
2. It spelt out the jurisdiction of the court in the Kabaka's kingdom stipulating that this jurisdiction would cover only cases involving natives (cross- reference to Article 8).
3. It spelt out remuneration of the Kabaka and that he would be guaranteed a yearly allowance of pounds 1,500 as well as pounds 650 for household needs during his year of minority while the regent would get an annual salary of 460 pounds.
4. It stipulated that the Kabaka would be addressed as His Highness and receive a 9-gun salute at functions (while His Majesty of England got a 21 Salute).

It is clear from Article 6 that with overall authority was vested in the colonial government and the Kabaka rule at its pleasure.

Article 7 provided that the Namasole mother of the Kabaka was to receive a lifetime allowance of 50 pounds a year while this sum was designated during her life time, it was one-off allowance that would not continue for the subsequent Namasoles.

Article 8 provided that in cases of a mixed nature cases involving natives and non-Natives these were subject to the jurisdiction of the British Courts (cross reference 1902 Order-in-Council sec. 15).

Article 9 as already noted divided Buganda into 20 administrative units (counties) each of which was to be headed by a chief appointed by the Kabaka's government and approved by the colonial administration. The chief were to receive an annual salary of 200 pounds and carry out a number of functions including;

1. Administering of justice (in effect the chiefs were the judicial officers in the Kabaka's courts).
2. Assessment and collection of taxes up keep and maintenance of roads.
3. Overall supervision of native affairs with respect to all their functions, except for the collection of taxes, the chief was to report to the Kabaka's government. As regards taxes, the chiefs were responsible to the colonial government.

If a chief failed to carry out his duties diligently, the colonial Government could call upon the Kabaka to dismiss and replace him.

Article 10 stipulates that the Kabaka would be allowed three ministers (native officers of state) including:

- a. Prime minister (Katikiro)
- b. Chief Justice (Omulamuzi)
- c. Treasurer (Omuwanika)

Who were to be approved by the colonial administration.

The three ministers were to receive an annual salary of 300 pounds (except where they were regents for which they received 400 pounds). The native officers of state were to act as a conduit for relations between Kabaka and the colonial administration.

The P.M was to be an ex-officio member and president of the lukiiko. While the Chief Justice was to be the vice president.

Article 11 constituted the lukiiko as the native legislative body of the kingdom apart from the three ministers, it was to comprise each county chief (who were also to be ex-officio members and seven other persons nominated by the Kabaka.

Functions of the lukiiko were;

1. Discussion and legislation on all matters relating to the administration of the kingdom.
2. Act in certain instances as courts of appeal involving property and sentences of imprisonment. Notably the lukiiko had no power over the property belonging to Europeans.
3. Membership of the lukiiko was confined to the natives of Buganda and on selecting his representatives; the Kabaka was under a duty not to take into account the religious affiliation of the person selected.

Article 12 provided for taxation as a means of raising finances and revenue towards the administration of the kingdom and the protectorate. A system of taxation involved the following taxes:

- a. A hut tax of 3 rupees or 4 shillings per year imposed on every hut used as a dwelling place.
- b. A gun tax of 3 rupees or 4 shillings per year to be paid by any person who possessed a gun.

Article 12:

However, contained exemptions of certain persons from the payment of gun tax in respect of a certain number of guns thus the Kabaka was granted 50 guns for 50 men in his household. The Namasole was to get 10. The ministers 20, county chief 10 and other membership of the lukiiko one.

The system of succession was however not to affect:

- a. Exterior taxation i.e customs and port dues.
- b. Rates on things such as water, lightings, market dues.

Significantly Article 12 embodied the principle of no taxation without representation or legislation. Given that no other tax was to be imposed except by the majority of the

lukiiko.

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Article 13 dealt with the question of military service in Uganda by recognizing the Kabaka's preexisting right to conscript able bodied men for military service in the defence of the kingdom where the need to arise. However, this right was now to be exercised under advice of the colonial administration. Article 13 as with other provisions of the agreement affirm the laws of the Kabaka of his authority in the kingdom in this regard in respect of military affairs.

Article 14 provided for the maintenance of roads in the Kingdom. It would give the county chief labour and free able-bodied men to compulsory work on the up keep and maintenance of roads

Article 15 concerned with the distribution of land and was to be of great significance the subsequent history of Buganda and the protectorate at all. The land was distributed as follows:

- a. 1,500 sq. mile of forest came under the control of the colonial administration.
- b. 9,000 Sq. Miles of land was vested in her majesty's government and under the control of the colonial administration.
- c. 19,000 and 9,000 sq. miles came to constitute the crown land. (cf Article 18 compensation for the 10,500 sq. miles).
- d. 330 sq. miles of plantations and other private property for the Kabaka 16 sq. miles for the Namasole, 10 sq. miles and other private property for the king's mother.
- e. 320 sq. miles for the 4 princes.
- f. 960sq. miles for the princesses, and other relatives of the Kabaka.
- g. 320 sq. miles for the county chief of which 160 sq. miles was held as private property/ each chief and the other 160 sq. miles was the official estates of the county.
- h. 96 sq. miles for the regents of which 48 sq. miles was private property each regent 16 sq. miles and the other 48 sq. miles was official estate advanced to the office of the regents.

- i. 24 sq. miles for Nuwa Mbogo, leader of the Muhandans.
- j. 20 sq. miles for the Kamuswaga the chief of (kooki).
- k. 180,000 sq. miles for 1,000 chiefs and other private owners. There were mostly estates already on possession and each was composed at an average of 8 sq. m.
- l. 92 sq. miles for the three missionary societies.
- m. 50 sq. miles for the colonial government for its station and offices.

Because of distribution of land in sq. miles, it came to be known as mailo land, although it is basically freehold.

Article 15 would have a significant impact on the political, socio-economic and cultural destiny of Buganda and the protectorates.

- i. It led the disposition of the Kabaka's authority over the Butaka/customary tribal land. It would ultimately lead to the demise of communal land ownership in Buganda. This was made more apparent by the pressing of Buganda land law of 1908 which allowed for the alienation of land in Buganda. See **Mwenge v Migade (1933)**.
- ii. Given that mailo land was free hold, it placed emphasis on individual ownership and as such land became the basic unit of economic development of the protectorate. The difficulties of the relations would emerge in the early period of colonial rule.

Articles 16 and 17 dealt with the promulgation of Forest Regulations and rights over ministers on private estates and further confirmed the colonial government's grip and control over economic and natural resources.

Article 20 stipulated the instances in which the colonial government would repudiate (revoke) the agreement on account of the conduct or acts of the Kabaka or chiefs or peoples of Buganda. One such instances was the failure to raise a minimum amount of revenue or the taxation due.

Article 21: Although the agreement was written in English and Luganda, the English version was the authoritative text to be used in its interpretation.

THE 1902 ORDERS– IN –COUNCIL

The 1902 order-in-council formalized colonial rule in Uganda and was the fundamental Law of the protectorate. The order in council was in exercise of power granted to His Majesty's government under the **Foreign Jurisdiction Act of 1890** to legislate with regards to foreign territories of the United Kingdom. 1902 orders-in-council dealt with several matters of constitutional significance ranging from the provincial and administrative divisions, structures of government. Administration of justice and the maintenance of law and order to the applicable laws. As the fundamental law of the protectorate, the Order-in-Council provided for the following:

1. First and foremost, it defined the provinces and administrative divisions of the protectorate under Article 1. In so doing it defined the extent of the applicability of Order-in-Council as a constitutional instrument. As well as the extent of the jurisdiction of the colonial government in the protectorate. The divisions originally established by the Order-in-Council were five.
 - a) The Central province consisting of the districts of Elgon, Karamoja Busoga, Bukedi and Labwor.
 - b) The Rudolf province consisting of the districts of Torkwed, Turkana and Dabossa.
 - c) The Nile province consisting of the districts of Ddinga, Bari and Shuli.
 - d) The western province consisting of the districts of Bunyoro, Toro and Ankole.
 - e) The kingdom of Buganda and the islands appertaining thereto (Article 3 of Buganda government).

In 1926, a border adjustment took place to transfer a part of eastern Uganda to the Kenya

colony. This was undertaken by two Orders-in-Council that is



the **Kenya Colony and Protectorate (Boundaries) Order-in-Council of 1926**. **Proclamation under Article 6: Uganda Order-in-Council of 1926** as a result of which what was referred to as a Rudolf province became part of Kenya. The protectorate was divided into districts and sub-districts for the purposes of its administration and this was a power conferred by Article 6 to the commissioner.

2. It provided for the office of the Commissioner under **Article 4 and 5** who was to take overall control of the administration of the protectorate as the chief representative of His Majesty's government. The commissioner would later become the Governor under the provisions of the 1920 order-in- council.
3. The Order-in-Council provided for crown lands under **Article 7** which were under the control of the commissioner. The order-in-council defined crown lands to mean all public land in the protectorate that had been subject to the control of His Majesty by virtue of any treaty convention or agreement and all land, which shall have been acquired for public service (Article 2). Similarly, minerals and mines were to vest in the colonial government, under **Article 7 (clause 4)**. In effect the control of the greater part of land and natural resources in the protectorate was vested in the colonial government. The definition of crown land by reference to agreements was intended to affirm the public lands acquired under Buganda, Ankole and Toro agreements.
4. The Order-in-Council empowered the commissioner to make laws under Article 8-10. In 1920, this function was placed in the hands of a legislative council. However, by virtue of the 1902 order-in-council, the commissioner was able to make laws for peace, order and good governance in the protectorate between 1902 and 1920.
5. The Order-in-Council established a system of exercise of judicial power comprising of the Courts of Justice, in particular the High Court which was to have full civil and criminal jurisdiction on all persons and matters in Uganda. This was provided for under **Article 15 (clause1)**. The court was referred to as His Majesty's High Court of Uganda.
6. The Order-in-Council contained a reception clause under **Article 15 (clause 2)**. The *reception clause* essentially defined the law to be applied

in the protectorate and in particular in the judicial determination of disputes and matters by court. The applicable law was to include in law, doctrines of equity and statutes of general application of force. The reception date of Statutes of General Application was legislation in force in England as of 11th August 1902. This is how laws such as the Evidence Act, Contract Act, Sale of Goods Act, and Penal Code came to be part of the laws of Uganda.

7. The Order-in-Council contained a repugnancy clause under Article 20. The clause recognized the application of native laws and customs in disputes involving natives as long as they were not repugnant to natural justice and morality.

Article 20 provided: in all cases, civil and criminal to which natives were parties, every court shall;

- a) be guided by native law so long as its applicable and is not repugnant to justice and morality or inconsistent with any order-in-council or ordinance or any regulation or rule made under any Order-in-Council/or ordinance.
- b) Required the courts in such disputes between natives to decide all such cases according to substantial justice without undue regard to technicalities of procedure and without undue delay. **R v Yowasi K. Paulo et al (1922)** is a forerunner to Article (d) & (e) of the 1995.

The repugnance clause was intended to remove those customs and laws that were considered negative and repugnant to natural justice and good conscience. The major problem with the clause was that the negative and repugnant aspects of a custom were perceived in the eyes of the colonial judge. In other words, it was a subject test which was applied according to the morals and standards of an English person. As a result of this subjectivity, many native laws and customs which were fundamental to the social fabric of the native communities were rendered inapplicable at the stroke of the English man's pen.

The subjectivity of repugnance of native custom was reflected upon by Justice. Wilson in the case of **Gwao Bin Kilimo v Kissunda Bin Ifuti (1928) 1 T42 403** in which he admitted that the test is one of English morals and standards.

The most famous case on the repugnant clause was **R. v Amkeyo (1917) KLR 14**. Amkeyo had been charged and convicted of possession of stolen property and the man witness against him was a woman whom he claimed to have married according to native custom.

On the basis of the law of evidence, the testimony of this woman should not have been admitted given the desire to protect marital confidence. The issue by the court was whether a woman married under native custom was a wife in the strict sense of the word and in effect that the relationship between Amkeyo and the woman could be construed as a marriage.

Hamilton C.J took the view that the relationship between Amkeyo and the woman in question was for lack of a better phrase “*wife purchase*” and that it did not fit in the idea of marriage as generally understood among civilized peoples and that the native custom was supply repugnant to good conscience and morality. In holding that the relationship under native custom was not a marriage, the C.J underscored the standards of a marriage as understood among the English.

The rejection of a relationship under native custom as a marriage was founded on a number of reasons:

- a. There was no consent on the part of the woman as she was not a free contracting party.
- b. The element of bride price or bargain made the woman to be rather in the nature of a (chattel).
- c. Relationship under active custom was potentially polygamous.

Read these Cases

Abdulrahaman v R. (1962) E.A

Whether a relationship contracted under Mohammedan law was a marriage.

Uganda v Alai (1967) E.A 596

Alai was accused and charged with adultery. And his argument was that the woman

was married under customary law, so she was not a wife. Held: **Udo**



Udoma C.J., held that marriage under the laws of Uganda included relationship under civil, customary laws.

Nb After 1964, laws were made to recognize all forms of marriage.

The repugnance clause has survived beyond the colonial period and has been stipulated under the various Judicature Acts since, that is the 1962, 19678 and 1996 Judicature Acts (now cap 13 Laws of Uganda 2000).

Qn.

Is the Repugnance test really the suitable test for determining the validity and continuity of custom or should the test be rather one of consistency with the constitution, that is Article 2 (2), 33 (6) and 246 (2) among others.

Gwao Bin Kilimo v Kissunda Bin Ifuti (1928) 1 T42 403

A government tax clerk named Mange received 10 Shs. From Kisunda for poll tax issued him with a false tax ticket and converted the money to his personal use. Mange was charged and convicted in a criminal court. Subsequently Kisunda sued for the return of his 10/= and obtained judgment in his favour thereafter, Kisunda went and took possession of 2 heads of cattle, which wasn't property of Mange but the father Gwao Bin Kilimo unsuccessfully objected to the native and so brought the matter to the High Court. The issues by the High Court were:

- i. Whether there was an authentic Turu native law, which allows the taking of a father's property in compensation for a wrong done by a son.
- ii. Whether this native law is consistent with the repugnancy clause

By Article of 24 of the 1920 Tanganyika Order-in-Council. A British court may or should be guided by native law. The court noted that the alleged native law was not of universal application and so baraza of chiefs had never enforced the custom.

Nonetheless, Judge Wilson went on to reject such a custom as being repugnant because it could never be expected that an individual should bear responsibility

of the conduct of another adult person and therefore the alleged **Turu native** law was repugnant to justice and morality.

Mwenge v Migade (1933)

Migade wanted to sell land which was part of Butaka and Mwenge challenged his right to do so on the basis that Butaka land was inalienable in native Buganda customs. The issue before the court related to the instance and continuance of customary tenure in Buganda.

The court considered the provision of the 1900 agreement and the land legislation passed by the Buganda government. (**Buganda Land Law of 1908**) and when not to hold that the practice in Buganda showed that butaka tenure no longer existed and therefore, by the provisions of the land law. The continued existence of the alleged custom was repugnant and that the custom must be repealed as abrogated and destroyed.

Kajubi v Kabali (1944) 11 E.A.C.A

R. v Paito and others

In this case, the accused and 5 others were arrested for;

Proceedings in the court, the court adapted procedures peculiar to the native. The procedure normally is for the complainant to prosecute since there is no designated prosecutor under Buganda native laws – given that the Kabaka was the aggrieved person and could not appear in his own courts to prosecute, the court acted as prosecutor putting questions to the accused itself and finally convicting them. On appeal to the High Court, the three accused that the procedure adapted was irregular. The High Court held that the procedure of the lukiiko court is not expected to be the same as in a British Courts. But as long as the procedure of the lukiiko allows for substantial justice being done, there are no grounds for setting aside a decision of that court for irregularity.

8. The Order-in-Council provided for the power of the commissioner to order the removal or deportation of any undesirable person from the protectorate, in order to preserve peace, order and good governance. This favour was provided under Article 24 and 25. An order of removal or

deportation was not subject to judicial appeal before the courts as a result of the provisions of Article 24 and 25.

The commissioner made laws for removal and deportation:

1. **Removal of Undesirable Natives Order 1907**
2. **Deportation Ordinance 1908**

This was revised four times between 1908 and 1956. On the several occasions during the colonial period, orders of removal and deportation were issued to deal with anti-colonial sentiments instances included:

Deportation of several members of the Bataka party after the riots in 1940s. Deportation of Kabaka Mutesa II in 1953.

Re GL Binaisa (1959) E.A 997

Judicial inquiry pending deportation.

The Deportation Ordinance would survive into post-independent Uganda as Cap 46 and its constitutionality would finally be challenged in *Ibingira I* in 1956.

Implications of Order-in-Council 1902 in terms of constitutionalism.

The Order-in-Council is important because it was the first legal instrument to establish a framework of government for the whole of the protectorate. It put in place the basic elements and structures of government, which would influence politics and constitutional government through the colonial period as well as post independent Uganda.

On the other hand, the Order-in-Council tended in other respects to negate the ideas of constitutionalism including those ideas, which had developed in Britain at the time e.g.

1. It did not respect the doctrine of separation of powers given that the legislative and exercise of powers were vested in the one person of the commissioner

2. It did not recognize the rule of law by applying double standards an open discrimination between the natives and the Europeans. For instance, on terms of adjudication of disputes.

The absence of the rule of law was also apparent in the denial of the right of recourse to court by individuals in respect of the acts of the colonial authorities.

3. It did not define the rights and freedoms of the individual in fact apart from a casual reference to *Habeas Corpus*; the Order-in-Council does not mention human rights whatsoever. The question that has been significant in Uganda's constitutional history has perhaps been on the relationship between the Order-in-Council and the kingdom agreement, Article 5 stipulated that the agreement would have procedure over other laws of the protectorate. The relationship between the Order-in-Council and the kingdom agreement would be the subject of dispute in a number of cases.

Nasanairi Kibuuka v Benie Smith, (1903) 1U.P.L.R 34

The issue related to the legislative powers reserved the kingdom of Buganda under the 1900 Order-in-Council. The court held that his Majesty's government did not acquire powers in Buganda which had not been granted by the 1900 agreement. **Carter J**, noted that;

“As I understand the agreement, it is not to be regarded as taking away any right or power of the Kabaka except by its express provisions. Therefore, whatever powers had Kabaka before remained with him except as far as they are expressly taken away or limited. A sovereign state has undoubtedly the power of legislating which was the case prior to the 1900 agreement, in so far as am aware which the agreement takes away this right”.

Katozi v Kaniži (1907) 1 U.P.L.R.24

This case involved the conflicts between the 1901 Ankole agreement which reserved certain judicial powers in Ankole native courts and the terms of the 1902 Order-in-Council which in establishing the High Court claimed to give it full jurisdiction within the protectorate territory. The High Court held that the Order in-

Council did not alter existing kingdom agreements. The court's decision was supported by the secretary of state for the colonies who stated:

“The validity of Uganda Order-in-Council, 1902 is so far as it nullified this reservation of judicial powers is open to question. In these circumstances am advised that the Uganda-Order- in-Council of 1902 should be construed in such a manner as not to impair the rights and powers reserve”

These two early cases, indicate the courts giving prominence to the kingdom agreement and bearing powers reserved to the native institutions under those agreements. In the subsequent decade, the courts demonstrate a shift in approach that would result in the virtual disrespect the kingdom agreements.

R. v Besweri Kiwanuka (1937)

The issue was whether the High Court established under the Order-in-Council had jurisdiction over matters and persons in Buganda. The Buganda Agreement had not explicitly stated whether or not this would be the case (Article 6). As in the **Katozi** case, the issue was referred to the Secretary of State of the colony whose reply was to affirm that the 1902 Order-in-Council was superior to the kingdom Agreement. The court eventually held that the 1902 Order-in-Council, Her Majesty's government had made manifestations to the extent of his jurisdiction in Uganda and further that such manifestation was to be regarded as an “act of state” which was not challengeable before Her Majesty's courts

Mukwaba and others v Mukubira and others (1954).

One of the issues raised before the court related to the validity of the withdrawal of recognition and deportation of the Kabaka in 1953. The court held that the withdrawal of recognition under Article 6 of the Buganda agreement was an Act of State in which case, the court would not be able to inquire unto its validity.

Katikiro of Buganda v A.G (1959) E.A 382

The issue was whether the protectorate government in conducting the 1953 Buganda Agreement which provided for a format of indirect elections for

Buganda. The court held that the conclusion of the 1955 agreement was an Act of state and therefore not challengeable before her Majesty's court.

Daudi Ndibarema v Enganzi of Ankole (1960) E.A 47

The issue was the validity of the Ankole Land Regulations of 1958 in relation to the 1901 Ankole Agreement. The conclusion between the Ankole Agreement amounted to an Act of state upon which no inquiry could be brought before the courts.

Shobuza II v Miller and others (1926) AC 518

These cases ended the debate about the superiority as between the Order-in-Council and kingdom agents and the courts difference to the Act of state doctrine was in the interest and political convenience of the colonial government. Most significantly it demonstrated the fact that the colonial government did not respect or feel itself bound by the provisions of those agreements.

IMPOSITION AND OPERATION OF COLONIAL RULE BETWEEN 1902 AND 1920

Once the Buganda agreement had been signed and 1902 Order-in-council enacted, the British government spent the next two decades consolidating its authority and over rule. In between the two instruments other kingdom Agreement had been signed with Toro and Ankole with administrative structures set up under those kingdom Agreement essentially similar to those of Buganda (counties, chiefs, native courts and legislative councils, officers of state etc) Outside the kingdom areas, or addition to the 1902 Order-in-Council the primary instrument for the consolidation of colonial rule was the Native Authority Ordinance of 1919 which made provisions for the powers and duties of chiefs and for the enforcement of authority in their areas of jurisdiction. The 1919 Ordinance, the chiefs had administrative duties (collection of taxes, supply of labour for the maintenance of law and order, prevention of crime, arrest and detention of people's and animals etc.).

In 1920, another Order-in-Council was promulgated and whose major significance was the introduction of district organs of government. This was

actually the primary purpose of the Order-in-Council as was apparent in its preamble which refers to the necessity of executive and legislative councils.

The main changes introduced by the 1920 Order-in-Council:

1. It changed the nature of the head of the protectorate from commissioner to governor. A term that would remain until 1962.
2. It established the Executive Council under Article 6 as a formal executive arm of government and was to consist of such members as His Majesty's government would decide to appoint. In the subsequent years, the executive council would consist of officers such as;
 - a. Director of Finance
 - b. Director of Medical Services
 - c. Director of Transport
 - d. Attorney General
 - e. Director of Agriculture
3. It established the legislative council (Article 7) 10-17 as the formal legislative organ of government and was to executive the legislative powers hitherto by the commissioner. The commissioner hitherto exercised the legislative powers. The legislation council was to consist of the governor and not less than two other persons appointed by His Majesty's government. The powers of the legislative council were;
 - i. To make law
 - ii. Constitute the courts
 - iii. General oversight of administration of justice and maintenance of peace, order and good governance. Laws made by the legislative council were to be sent to the governor for assent otherwise they lacked validity. The governor had a right of veto on all matters of the legislative council.
4. Members of the Legislative and Executive Council sat at the pleasure of His Majesty's Government and therefore would be removed from office. (Article 6 and 7).

The governor was also given power to suspend either member of the executive and Legislative Council which suspension had to be confirmed by his Majesty's government and if so done, the particular individual must vacate membership on either council (Article 16).

5. The judicial system put in place under the 1902 Order-in-Council remained largely intact. The Eastern African Court of Appeal would be established a year later by the 1921 East Africa Court of Appeal Order-in-Council.

The Order-in-Council is significant in Uganda's constitutional history as for the first time; the best features of a typical constitutional state are seen to take shape. There is more or less a clear demarcation of the three powers under the 1902 Order-in-Council. However, it was still designed to retain and reinforce colonial authority given to closer relationship on the powers of government such that there had not been much of the transition in the actual distribution of power. In effect, the Order-in-Council confirmed the reforms. This is evident from the membership of the executive and legislative councils under the Order-in-Council. The ex-officio members of the legislative council were largely drawn from the public service including the Executive Council and there were the majority while official members were a minority. Further, the governor's right of veto and power of suspension of members rendered irrelevant any demarcation of powers between the arms of government.

In effect, while there were district organs of government and an increased number of persons involved in the administration of government, the powers of the government remained largely intact. Finally in spite of the creation of the executive and legislative councils, the management would for some time continue to exclude Africans and other non-European community from their membership.

DEVELOPMENTS IN THE PROTECTORATE FROM 1920s – 30s

In the 1920 and 1930s, there were a number of developments but two in particular stood out significantly.

1. The Asian question in terms of political representation and economic interest.
2. The Bataka and peasant grievances in respect of relations on land in Buganda.

THE ASIAN QUESTION

After 1920, demands for participation in the protectorate government would be made not by the native Africans but by the other non-European community, the Asians. The Asians had come to E. Africa at the close of the 19th mainly to construct the Uganda railway. After which most settled in Kenya and Uganda carrying on trade and commerce as their main occupation.

By the 1920s, the Asian community was significant and because of their numbers, they argued for a political and economic state in the protectorate. The Asian community put pressure on the colonial government for representation in the legislative council and this would bear fruit to the nomination in 1926 of the first Asian representative Chinubhai Jethabai Amin to the legislative council. In effect, the first non-European representative on the Legislative Council was Asian rather than African. It would take another 19 years before African representative to the legislative council was recognized. The Asian question would throughout the colonial period affect politics and government in Uganda.

In terms of economic interest, the promotion of the Asian economic prosperity was not by accident nor was it their doing for discriminatory and racist laws put in place by the colonial government results economic privileges and ultimate domination of trade and commerce by the Asian community. This domination was a result of laws and policies, which excluded Africans trading within a specified radius of an urban center.

The Trading Ordinance of 1938 would prohibit Africans from trading within a radius of 10 miles of an urban center or township. The Trading Amendment Ordinance- 1930 attempted to reduce the effects of the ordinance by reducing the limitation of 1-mile radius. Similarly, Africans were prohibited from growing cotton, processing coffee as well as engaging in export-import trade thus the foundation of the economy of the protectorate was left largely in the hands of the Asians. This led to friction and antagonism against the Asian community such that wherever there were uprisings and riots, as occurred in the Bataka uprisings of the 1930s and 1940s, the Asian community was a prominent target of expressions of Anti-colonial sentiments as they were identified as part of the repressive colonial rule. One can in fact say that the 1972 expulsions represented the culmination of the African dissatisfaction with the Asian community.

GRIEVANCES OF THE BATAKA AND PEASANTS

The protectorate underwent significant developments between 1900-1930 particularly in Buganda. During that period, the power of the mailo land beneficiaries was on the increase and this was set against the dissatisfaction of those who had been disposed by the land redistribution under the 1900 Uganda Agreement that is the Bataka clan leaders. When Kabaka Chwa II took over from the Regents, the Bataka who had formed a quasi-political association, the Bataka Association in 1921 appealed to the Kabaka to ask the Governor for a period of the agreement. They were joined in this appeal by the peasants who were burdened by the rent (*Busuulu* and *Envunjo*) paid to the mailo land owners. Although Kabaka Chwa II was sympathetic, the Lukiiko which was composed of the main beneficiaries of the land distribution rejected the demand.

Nevertheless, at this point in time, the colonial government had itself been concerned about:

- i. The relations between landlord and tenant in Buganda.
- ii. The system of land tenure in Buganda was not delivering efficiently in economic terms and
- iii. The Bataka grievances which if not addressed threatened to be even more problematic to the administration of the protectorate. Under these circumstances the colonial government set up a commission of inquiry in 1925 and in 1928 wherefore the *Busuulu* and *Envunjo* Law was

enacted to bringing to an end to the previously unlimited amount of rent and tribute that the landlord could extract from tenants. Given that the amount payable was often arbitrarily determined by the landlord. The peasants had therefore felt oppressed by the system and the colonial government admitted that the state of affairs was not economically productive.

In this regard in 1928, Busuulu and Envujjo law did:

- a. That a limit in the amount of Busullu and Envujjo that landlords could extract from tenants.
- b. Guaranteed to Buganda peasants, complete and hereditary security of tenure that is they could not be evicted for simply failing to pay rent and so allowed for the continued cultivation of land.

Look at this particular part in Nabudere's Imperialism & Revolution in Uganda.

The Busuulu and Envujjo law of 1928 represented a revolution in the socio-economic relations in the protectorate. The law created new relations between landlord and peasants by reducing the arbitrariness and insecurity in those relations. Economically the tenants gained security of a use of the land and this ensured that cash crop production continued.

look at *Mwenge v Migade* (1933)

On the part of the Bataka who had raised the peasants' complaints, their own grievances relating to the restoration of their cultural authority over communal land were not addressed. In fact, the Busuulu and Envujjo law robbed them of their support base. The case of the Kabaka was more complex. On the one hand, he was seen a sympathetic listener to the plight of his people.

On the other hand, however, he was not actually able to deliver any reform. His prestige and position were generally undermined. That he was to lament;

*"My present position is so precarious that am no longer direct ruler of my people.
Am beginning to be considered by my subject merely as one of the British*

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servants. This is solemnly due to the fact that I do not real power of over my people. Even the smallest chieftainship is under the control of the provincial commissioner. Any order given whether by the local chiefs or the Lukiiko is always looked upon with contempt unless and until it is confirmed by the provincial commissioner."

Look at **Yowasi K. Pailo (1922)**.

The Busuulu and Envujjo law was able for the time being to diffuse social and economic tensions in the kingdom. However, the failure to address the grievances of the Bataka would result in increased antagonism and protests. Most significantly, the Bataka would eventually organize the most prominent early anti- colonial riots.

THE HUMAN FACE PERIOD: COLONIAL REFORMS AND POLITICAL DEVELOPMENTS TOWARDS INDEPENDENCE:

The developments in the 1940s in Europe and domestically in the colonial gave way to what tends to be referred to as the human face period of colonial administration. This can be attributed to a number of factors;

1. The war in Europe had resulted in the weakening of the economies of most European powers and so rendered it difficult to maintain the administration of the colonies.
2. Africa participation in the war in places such as Burma and India (for instance by the King African Rifles) had awakened an upsurge of nationalistic feelings and desires for self-government. This was given impetus by the UN's emphasis on self-determination under its charter and the 1952 General Assembly resolution on the grant of independence to colonial territories and peoples. (Res. 1514(xx) (1960).

Further, the appearance of the labour government in U.K with policies more inclined to the granting of self-government to the colonies would gradually see the grant of independence to the British colonies.

3. Domestically, in the protectorate, the Bataka upsurge saw it emerge as a strong political force turning the 1921 association into the ***Bataka Union*** in 1945 and with a more nationalistic and political outlook.

The ***Bataka Union*** would stage strikes and riots in Buganda in 1945 and 1949. They did also submit a memorandum to the colonial government in 1945 asking for social-economic and political reforms (native election of their own chiefs, rights of natives to grow and process cotton and coffee as well as engage in export trade. The Bataka union was subsequently banned in 1961 as an unlawful society by the Penal Code Ordinance of 1951, but its legacy was to inculcate nationalistic feelings and the ultimate emergence of nationalistic political organizations for instance the Uganda National Congress.

KABAKA CRISIS, 1953 – 55

(Look at Kanyeihamba's Constitutional History of Uganda)

In January 1952, Sir Andrew Cohen arrived as governor and during his governorship, he sought to reform colonial policy particularly as regards:

- i. The creation and training of African administrators.
- ii. Increment of African participation in the protectorate government.
- iii. Placing of local government on a stable and democratic platform.

Significantly one of Sir Cohen's first concerns was in regards to Buganda. In March 1953 Cohen issued a joint memorandum with the Kabaka on constitutional development and reform in Buganda providing for;

- i. 60 of the proposed 89 members of the Lukiiko were to be elected.
- ii. The Kabaka was to consult the committee of the Lukiiko before selection of his minutes.
- iii. Increment of the responsibilities of the Buganda government and the devolution of services as such local services, on primary and junior secondary, rural hospitals and dispensaries, field services for soil conservation livestock breeding and disease control were to be transferred to the Buganda government.

The devolution of services appeared to be contrary to the promotion of the protectorate unity as was regarded by Sir Cohen as essential to it. In fact, the reforms of March, 1953 were an attempt to forestall a federal system rather than an essential step towards it. The memorandum in fact provided:

“The Uganda’s protectorate has been and will continue to be developed as a unitary state.”

Significantly the 1953 reform would demonstrate the dependence of the colonial government on the legal cooperation of the Kabaka with the ascendancy of Mutesa II as Kabaka, his strength was bound to be the cause of friction between the Buganda government and the colonial government. Educated at Cambridge and already offended that he was not treated with honour at the coronation of Queen Elizabeth II in 1952, the reliance on Mutesa II to promote colonial government policy was unlikely to be a happy circumstance.

Nonetheless Mutesa II was keen to support the March 1953 reform but where the Cohen policy in its strong belief that Uganda must develop as a unitary state threatened the tribal loyalties. This would result in tribal institutions including the Kabakaship declining in importance. This factor and concern would spark off the crisis in Buganda that came to be known as the Kabaka crisis of 1953 – 1955. The Kabaka crisis of 1953 – 1955 was sparked off by a speech made on 30th June, 1953 by the Secretary of State for the colonies in which he referred to the possibility.

“As time goes by of larger measures of unification and possibly still larger measures of federation of the whole East African territories.”

This pronouncement caused adverse public reaction on Buganda. In a seriously worded letter, Kabaka Mutesa II urged that the affairs of Buganda be transferred from the colonial office to foreign office and that the time table be prepared for the independence of Buganda. In particular, they later rated that;

“The Kabaka and his ministers could no longer feel happy about Buganda’s position under 1900 agreement. Apart from the danger of federation, they considered the policy of developing a unified system of government along

parliamentary lines which would result in Buganda becoming less and less important in the future.”

The Kabaka's and Buganda's demands were for more than a challenge to any proposed federation as they meant a complete break with governor's Cohen's vision of a unitary state in Uganda. The Kabaka's letter would only reaffirm Buganda's separatist tendencies and assertion of claims to a special status that were arguably evident since 1902. During the proceedings of a case filed in 1994 to challenge the deportation of the Kabaka (***Mukwaba and 2 other v Mukubira and 4 other***). The treasurer is recorded as having stated:

“After some two or 3 years after the agreement, the divisions (dependencies) into provinces to rank as being equal to Buganda province. As regards administration we are of equal rank but otherwise, we the Buganda kingdom is independent.”

On October, 27th, 1953 the lukiiko passed a resolution (directing) the advising the Kabaka to refuse to name any representatives of Buganda to the legislative council. By 1945, African representation was first admitted in the legislative council. They were to be three representatives, one being the Katikiro of Buganda. Another to be the Katikiro of the other three kingdoms, the other to be drawn from the other districts. The Lukiiko resolution not only endangered the success of the newly reformed Legislative Council but also rendered a unitary Uganda extremely unlikely.

After a series of unsuccessful negotiations, Sir Cohen put before the Kabaka certain undertakings to which he was required to agree:

- i. That the Kabaka would possibly cooperate in the future progress of Buganda as an integral part of the Uganda protectorate in accordance with the March 1953 reforms.
- ii. That the Kabaka would submit names of Buganda's representatives for appointment to the legislative council.
- iii. That the Kabaka would cooperate loyally with her Majesty's government in the organ and administration of Uganda in accordance

with the 1900 agreement. When Kabaka Mutesa II refused this undertaking, the governor withdrew recognitions from him, declared a state of emergency in Buganda and deported the Kabaka to the United Kingdom.

In the aftermath of the deportation of the Kabaka, a case was filed by the High Court, ***Mukwaba and 2 others v. Makubira and 4 others Civil case No.50/1954***. Three of the Kabaka's nominees to the lukiiko (plaintiffs) contested the right of the first four defendants who had been nominated to be members of the lukiiko to take their place in the lukiiko since they had been nominated by the Kabaka. The fifth defendant was the Attorney General of the protectorate who was joined to the suit as some of the issues related to acts of the protectorate government. The case eventually became an indirect attempt to challenge the validity and legality of the withdrawal of recognition of the Kabaka.

The issues before the court:

- i. Whether the one matter before the court was to justiciable.
- ii. Whether the dispute between the Kabaka and the protectorate government related to the organ and administration of the kingdom.
- iii. Whether the acts of the Kabaka could justify the withdrawal of recognition in terms of Article 6 of 1900 agreement.
- iv. Whether appointment of the nominees to the lukiiko was valid.

On the first issue, the Attorney General had argued before the court that the matter was unjustifiable. This argument was upheld by the court which noted that although the 1900 agreement created legally enforceable rights and obligations between the parties, these rights and obligations were not enforceable before the court. The court therefore held that the withdrawal of the recognition of the Kabaka was an act of state into which the court was unable to inquire as to its validity.

On the second issue the court held that the matter in respect of which the dispute arose between the Kabaka and the protectorate government concerned the matter of a federation and cooperation of Buganda with the reforms of March, 1953 and its representation in the legislative council. There according to the court

were not matters affecting organs and administration of the kingdom within the meaning of Article 6 of the 1900 agreement, the court held that therefore, no right to withdraw recognition had arisen from Article 6 in November, 1953.

On the third issue, the court held that the lack of loyal cooperation must relate to the phrase.

‘Kabaka, chiefs and people of Buganda’ in Article 6 of the agreement and this must be read conjunctively. The court pointed out that neither the chiefs nor the people of Buganda had shown any signs of disloyalty or failure to cooperate and therefore, the Acts that were solely of the Kabaka could not justify withdraw of recognition under Article 6 of the agreement.

On the fourth issue, the court noted that in the aftermath of the deportation of the Kabaka, the protectorate government passed or enacted *Emergency Powers (Regents of Buganda) Regulations of 1953 and 1954* which in themselves were superseded by the *Regents Order-in-Council in 1954* (as an Act of State). The court therefore held that the Regents Regulations were affective to give the regents power to nominate members to the lukiiko including the first four defendants. The court noted that the powers of nomination of members to the lukiiko were previously those of the Kabaka and before withdraw of recognition did not lie elsewhere than in the Kabaka. The fact that the case was decided on the basis of the defence of ‘*Act of State*’ gave the impression that the colonial government did not in fact respect the Buganda agreement or feel itself bound by its terms’(see D.A Law & Pratt, Buganda and British Overrule 1955 p. 342).

The reaction to the deportation of Kabaka Mutesa II was overwhelming with Buganda in particular angered by the deportation. Even the Uganda National Congress which was hostile to traditional institutions and rulers joined the voices agitating for the return of the Kabaka. In the aftermath, Sir Cohen set up a committee under the chairmanship of Hancock to consider among other things the constitutional reorganization in Buganda, continued participation of Buganda on the protectorate and representation of Buganda in the legislative council.

After several meetings between the Hancock committee and the Buganda government (known as the Namirembe negotiations). It was proposed to replace the traditional character of the kingdom with structures of a modern

representative government and therefore a new ***Buganda Agreement of 1955*** was conducted and shortly thereafter, Kabaka Mutesa II was allowed to return. In the 1955 Buganda Agreement colonial government did make concessions to the Kabaka and Buganda on the issue which had been the cause of his deportation, thus in the preamble to the agreement, it was provided:

“Her Majesty’s government has no intention whatsoever of raising the issue of the East African federation, either at the present time which the local political opinion on the issue remains as it is or in the future and recognitions accordingly that the conclusion of the Uganda protectorate practical politics at the present time or while politic opinion remains as it is.”

The colonial government also undertook to consult with the Buganda government on the matter of federation of it were arise in the future. In effect the agreement laid to rest to the question of federation and so upheld the Kabaka’s original objection.

The other main features of the 1955 agreement were:

- i. It constituted the constitution of Buganda and the Buganda government was transformed into a constitutional monarchy in that the Kabaka had to appoint his ministers in consultation with the lukiiko and not to the Kabaka.
- ii. The participation of Buganda in the legislative council
The election of Buganda’s representatives was to be und
lukiiko as an electoral college thus the format of
representatives to the legislative council was to be bas
indirect elections. The composition and forma
representatives was under the agreement not to be altered f

In 1958, the government would conduct elections on the basis of di
Buganda boycotted. In the following year a case was filed by the high court, ***Katikiro of Buganda v. Attorney General [1959] E.A. 382*** in which the Katikiro challenged the request by the colonial government that Buganda elect its

representatives on the promise that the 1958 elections had not been conducted in accordance with the provisions of the 1955 agreement and that since the colonial government was in breach of the agreement, they had no obligation to organize the election of Buganda's representatives.

In essence, the 1955 agreement established a framework within which Buganda would exist as part of a united although not unitary Uganda and in which parliamentary system of government is pursued.

Following the deportation of the Kabaka, Mutesa II was projected as a nationalist for standing up to the colonial government but the reality was that he was only protecting Buganda's sub-nationalist interests. From 1955 onwards the Kabaka and his government embarked on a course to ensure that protection of the interests of Buganda and Buganda's separatist tendencies heightened in the period after 1955 notwithstanding the formal arrangements in the 1955 agreement.

BIRTH OF POLITICAL PARTIES IN UGANDA AND COLONIAL REFORM (1952-1958)

It was at the height of colonial reform that Uganda's first genuinely nationalistic party, the Uganda National Congress was formed by Ignatius Masaazi in March 1952. The party had a freedom charter and manifesto, which asserted its main priorities to the realization of national unity, freedom, peace and equality. The party was driven by the desire to transfer power and authority from the colonialists to the indigenous people and this desire was expressed in its slogan.

'Self-government now'

The second political party to be formed was the Democratic Party in 1954. It was also a nationalistic party with the main objective of addressing what was perceived to be the historical discrimination and marginalization of peoples of the catholic faith under colonial rule and the Mengo administration. The Democratic Party nonetheless shared a common vision with the Uganda National Congress that Buganda's sub-nationalism was incompatible with the notion of a unitary independent Uganda. This particularly put D.P at loggerheads with the Buganda government throughout the period preceding

independence.

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Over the next eight years the Uganda National Congress would disappear as the political parties merged including the Progressive Party, Uganda People's Union, Uganda's People Congress and the Kabaka Yekka Party. By 1962, only the Democratic Party and the Uganda People's Congress remained strong and steadfast as national parties while the Kabaka Yekka was concerned with Uganda's sub-nation as its interest. Political parties were the major actors in the political and constitutional development of the protectorate between 1952 and 1962 in several respects particularly;

- i. African participation in the legislative council.
- ii. Participation in the formation and constitution of government during the period of self-government, 1961-1962.
- iii. Participation in the debates and discussion of the constitutional proposals to a framework of government for independent Uganda (during the Lancaster and Marlborough conference).

The catchword of the colonial reforms during this period was that of Africanization, that is the transfer of power into the hands of the Africans. In this regard Sir Andrew Cohen expanded the representation of Africans in the legislative council such that by 1954, Africans constituted fourteen as against 6 Europeans and 8 Asians in the legislative council. Sir Andrew Cohen also structured the ministerial system and positions for Africans such that in 1955, 3 Ugandans became ministers, that is:

- i. Mungonya
- ii. Nabeta
- iii. Apollo Kironde

Thus, for the first time during the colonial period, Ugandans would participate in government administration and policy. After Sir Andrew Cohen left in 1957, the new governor Sir Hedrick Crawford was faced with new demands for constitutional reform.

- i. That election to the legislative council should be direct.

- ii. Districts and other kingdoms demanded equal treatment with Buganda. In this regard the new governor organized for election at the end of 1958 with the franchise of illegible voters based on;
 - a. The voter must be able to read and write in his own language and
 - b. The voter must be the owner of freehold or mailo land.

If the voter was not a land owner, he should have occupied the land for at least 3 years before registration or been regularly paying taxes for at least 2 years or earning an income for at least 100 pounds a year or owns property of at least 400 pounds. Although the franchise was meant for propertied individuals, the 1958 legislative council would for the first time in Uganda's constitutional history be made of Africans representatives who were directly elected.

The only parts of the protectorate in which the elections were not direct were Karamoja and Ankole whose representative were chosen by the district councils and in Bugisu whose representative was nominated by the governor. Buganda refused to send any representatives to 1958 legislative council. The involvement of political parties meant that the 1958 legislative council was made up of 5 members from UPC, 1 from D.P and 7 independents.

The constitutional developments of the period following the 1958 elections were characterized by reports of two commissions:

- i. The 1959 report of the Uganda Constitutional Committee with **J.B Wild** as its Chairman (referred to as the Wild Committee Report) and
- ii. The 1961 report of the Uganda Relationship's Commission chaired by the Earl of Munster (referred to as the *Munster Commission Report*).

The commission and their reports were fundamental for Uganda's constitutional development at each point of time.

1) **Report of the Wild Committee (1959)**

- a. To advise, the protectorate government and to recommend on the form of

direct elections on a common role for representative members in the Legco. In other words, previously elections had been segregated along



racial lines. The fear was that this would continue and cover that European and Asian would give weighted votes, the other concern was that conferring the right to vote for European and Asians.

- b. To advise on the total number of seats to be filled by the electorate.
- c. To determine the mode of allocation between the deferent areas of the protectorate.
- d. Consider and advise on the question of representation by the non-Africans.
- e. To advise on the size and composition of the government.

The committee was nonetheless boycotted by Buganda who refused to submit its views. The recommendations made by the Wild Committee were:

- i. The next elections to be held in Uganda should be direct in all parts of the protectorate and should take place not later than 1961.
- ii. There should be a common electoral roll, which did not confer rights of citizenship (to Europeans and Asians).
- iii. The numbers of elected members should be increased and representation should be as follows:
 - a. For urban areas 4 representatives
 - b. Northern Uganda 15
 - c. Western Uganda will have 12
 - d. Eastern Uganda will have 20
 - e. Buganda will have 20

Meaning a total of 76 members. The Wild Committee also made certain recommendation outside its mandate, amongst which were:

- i. Apart from the elected members of the Legco, there should be specially elected members chosen by the Lukiiko sitting as Electoral College, to elect members

representing different interests and they were to be 6 in number.



- ii. The party with a clear electoral majority should form the government and the losing party would be in the official position.
- iii. The executive council should become a council of ministers with collective responsibility to the national assembly and that members of the council of ministers should be selected from the elected notional assembly members with selection of 3 members.
 - a. Chief Secretary
 - b. Attorney General
 - c. Minister for Finance

who were to be nominated by the Governor.

- iv. The governor should have little power if necessary.

Further in light of the many views that had been expressed on the form of government that Uganda should adopt and or the question of the relations between various peoples of the protectorate, the committee recommended that by the 1961 relations, a conference should be called to examine the issues and make comprehensive recommendations on these matters.

Hardening of Buganda as to its status 1958 onwards:

While the wild committee was making its constitution, Buganda kept on hardening as to its perceived status in the protectorate. With the 1958 boycott, the hardline demands comprising of the Kabaka, Chiefs and Landlords began to embark on ways of ensuring that Uganda's autonomy was insecure.

The boycott of elections had itself been designed to put pressure on the colonial government to give in to the demands of the kingdom. A movement began to grow in Buganda with its primary goal to secure the protection of Buganda's interests against the designs of the nationalists.

The administration of the movements function was the submission in November 1960 of a memorandum to her majesty, the queen of England stating as follows:

1. British protection over Buganda established by the 1900 agreement should be terminated. As a consequence of the termination of the stated plans should be immediately made from an independent Uganda. Amongst other things, the plan would include:
 - a. Establishment of friendly relations between Buganda and her majesty's government and the exchange of Ambassadors and High Commissioners.
 - b. Buganda would remain in the commonwealth and seek membership of the UN
 - c. All powers previously exercised by the governor were to be vested in the Kabaka and his government.
 - d. Buganda would have its own armed forces with the Kabaka as commander-in-chief.
 - e. All institutions of learning in Buganda with exception of Makerere College would fall under Buganda jurisdiction.
 - f. Arrangements for the independence of Buganda should be complete by 31st December, 1960.

On 1st January, 1961, the lukiiko declared the independence of Buganda. Although the declaration was never a reality, the message was very clear.

Neither the protectorate government nor the nationalist politicians could afford to ignore Buganda in the move to independence and its demands and interest had to be given respect and attention, failure of which the independence sentiment could not be realized. This was sharply brought home with the preparations the 1961 elections. Although the colonial government went ahead with the elections, the Kabaka's government directed its followers not to register for the elections.

Indeed, by the time, the registration was closed only a handful of mainly D.P supporters had actually registered. In effect, Buganda had organized another boycott which was successful. In political terms, the boycott marked the death of D.P in Buganda because D.P had defied the boycott. Ben Kiwanuka was portrayed as an anti-Buganda and as a man who did not respect the Kabaka. It was not helped that Ben Kiwanuka was also a catholic. The propaganda that followed the boycott was that Catholics wanted to take over the protectorate. On the other hand, U.P.C gained from the boycott because they had decided not to field candidates in Buganda. The Buganda government therefore felt that there was a possibility of good relations with U.P.C's Apollo Milton Obote and marked the onset of the UPC – Buganda alliance , (later cemented during the Lancaster conference).

2) *The Report of the Munster Commission 1961*

Set up in 1960 by the Secretary of State for the colonies, the report of the Uganda relationship commission was given by the Earl of Munster. Its basic terms of reference were to consider the official form government most appropriate for Uganda and the relationship between the central government and other authorities especially kingdoms:

The commission was to be guided by the following:

- i. Her majesty's government decision (resolution) to grant Buganda independence at an appropriate stage.
- ii. Development of sustainable institutions of government for Uganda.
- iii. Incorporation of specific circumstances and needs of the people of Buganda as they became independent.
- iv. Consideration of the desire of the peoples of Uganda to preserve the existing institutions and customs as to uphold the status and dignity of their King and rulers.
- v. The commission was to bear in mind the special relationship between her majesty's government and the kingdom with whom an agreement had been

made in the early 1900.

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The commission had to make sure that all these aspects be accommodated. Thus the 1961 Munster Commission Report together with the 1958 Wild committee report would provide for the two constitutional conferences, of which the first was held in 1961 at Lancaster and the second in Jun 1962 at Marlborough. The Munster commission made several recommendations.

- i) As regards trends for secession, it was unacceptable to allow Buganda to separate from the rest of the protectorate. The protectorate must continue till Buganda has reconciled itself with the rest of Uganda.
- ii) The relation of Uganda and Buganda should be a federal one.
- iii) The central government should have power over foreign affairs armed forces and police.
- iv) Buganda government should have power of over the institution of the Kabaka, lukiiko and matters governing tradition aspects of the government. Any residual powers (not allowed to either of the two) should be shared, but the central government should have the overriding power in the final analysis.
- v) Buganda should be given a guarantee that any laws made by the central government which would affect the Kabakaship and Buganda's exclusive interests would be of any effect unless agreed to by the lukiiko such a guarantee would be a law enforceable by the courts and Buganda should have the deciding voice in determining the forms of guarantee.
- vi) The Kabaka should withdraw from politics and become a genuine constitutional monarch, perform just ceremonial non-executive functions.
- vii) The lukiiko of Buganda should be directly elected. It would act as an electoral college for the 26 of Buganda's representatives to the national assembly.
- viii) Voting in the future would be by universal adult suffrage.

With regard to the character of government, the commission stated that Uganda should be a single democratic state with a strong central government. Within this state, Buganda should stand in federal relations while the other 3 kingdoms would be in semi-federal status. With respect to the head of state, until Uganda attained independence it would be the governor representing her majesty the queen. Thereafter, it was appropriate to debate on the head of state. Further, the head of the state would exercise prerogative powers of (the National Assembly), make treaties etc.

The legislature was to become the National Assembly. Any amendments to be passed by $\frac{2}{3}$ majority of the National Assembly. The courts of law would have the power to declare the constitutional legislation invalid.

In conclusion, the Wild and Munster reports laid out the broad parameters for the debate on the constitution an independent Uganda.

In conclusion, the Wild and Munster reports laid out the broad parameters for the debate on the Constitution of an independent Uganda. In fact, in certain respects, the two reports foreclosed debate while in others, opened up issues to incorporate new dimensions. Indeed, it can be said particularly of the Munster report that it provided a draft Constitution for Uganda. At the opening of the Lancaster Conference in September 1961, the Secretary of colonies expressed the view that the Munster report was useful and a solid foundation. Further he gave the view that as far as relations with Uganda were concerned, the Munster proposals were so far the best if not the only way of securing cooperation of the people of Buganda on the creation of an independent Uganda.

STRUCTURES AND ARRANGEMENTS UNDER THE 1962 CONSTITUTION

Promulgation of the 1962 independence constitution was a landmark in Uganda's constitutional history. For the first time, the framework of government was designed to be conducted within specific rules that sought to observe the broad principle of constitutionalism including separation of powers, supremacy of the constitution, independence of the judiciary, human rights etc. Nevertheless, the constitutional framework coupled with the political situation that prevailed in Uganda at the onset of independence meant that a number of problems remained.

There were crucial factors in the constitutional framework that resulted in the period of 1962-1966 being regarded as the stagnant years.

And these included;

1. The question of the head of state which was not addressed by the independence constitution.
2. The question of the federal relations in particular between Buganda as a federal entity and Uganda as a unitary state.
3. The question of the relation between Buganda and Bunyoro over the lost counties.
4. Problems of governance particularly in the relations between the executive and the other organs of government.

Invariably there were other problems including the opportunistic tendencies on the part of personalities in whom government and political authority was vested.

1. The Question of the Head of state

The independence constitution had maintained Her Majesty the Queen of England as the head of state and so necessitated the determination of a proper head of state for an independent Uganda. There were different opinions particularly between the parties and the kingdoms as to the criteria as to who should be head of state. The broad membership of UPC floated the idea that the

party should provide the head of state. Meanwhile KY and Kingdom of Buganda questioned the propriety of a commoner ruling over royalty.

After several discussions, it was resolved to give the officer of the head of state to one of the traditional rulers. When the debate was later conducted in the National Assembly the majority vote was in favor of a traditional ruler being the only person eligible to be a constitutional head of state. Thus, by the *Constitution of Uganda (1st Amendment) act No. 16 of 1963*, it was stipulated that the president and V.P of Uganda would be elected for a period of 5 years by the National Assembly and further that only traditional rulers would be eligible for election to these offices. On 4th October, 1963, Sir Fredrick Mutesa II, the Kabaka of Buganda, and Sir William Nadiope of the Kyabazinga of Busoga became the president and Vice President of Uganda respectively.

Joweth Lyagoba v. Bakasonga and Ors [1963] E.A 57

Rather than resolve the lacuna in a constitutional framework, the question of the head of state only took the new dimensions and bread new problems. Although the office of the head of state was largely formal and non-executive (in the sense of constitutional monarchy in a west minister type/style of government), tensions would begin to surface in the relations between the figurehead – head of state and the P.M. The issues would arise as to what the formality of the office of the head of state meant. Most significantly controversy arose as to who had precedence as between the head of state and the P.M, as to who was to represent Uganda at international conferences, as to whether Mutesa II should be allowed the police band at his birth day party etc.

But perhaps most significant as opposed to these rather petty issues was the question of the allegiance of Mutesa II to both offices of head of state and Kabaka of Buganda. The test would eventually come during the referendum on the lost counties when Mutesa II refused to sign the memorandum of transfer the counties to Bunyoro. The situation was made worse because the relations between the two personalities Mutesa and Obote gradually turned out into hatred for each other.

Invaluably the tension between the two personalities was nonetheless underlined by the broader question of Buganda's status in relation to the rest of Uganda. The

Kabaka's federalism was seen to be at loggerheads with Obote's perceived unitarism.

2. The question of the federal relations in particular between Buganda as a federal entity and Uganda as a unitary state.

The question of Buganda's position in relation to Uganda is one that was traceable to the period in the run up to independence particularly the Munster report of 1961 and the constitutional conferences.

The federal status of Buganda was as a major feature of the 1962 constitution created a situation in question the demarcations of authority and jurisdiction became all too confused. The potential for tensions to flare up was always manifest in particular as regards matters of jurisdiction by the legislative bodies and courts as well as on matters of finances and revenues.

Joseph Kazairame v. the Lukiiko [1963] E.A 472

A.G. of Ug. v. Kabaka's Gov't [1965] E.A 393

Coming up in 1965 in the wake of the lost counties referendum a year early in 1964, question had had disastrous effect upon the Kabaka's status and relations with Obote, the case highlighted how fragile the constitutional framework of the 1962 constitution was particularly as regards the federal relations of Buganda in a unitary Uganda. The lost counties issue had largely marked the end of the UPC- KY alliance. This case spelt the doom of the 1962 constitutional arrangement (chaos turned out only a year later in 1966).

Facts: The case involved distribution of finances and revenues between the central government and Buganda government and the question of how much in grants Buganda was entitled from the central government. Buganda argued that on the basis of its status, it should obtain a grant of a basis different from the other parts of Uganda. The fact that the matter wound up in court and could not be amicably resolved between the two parties demonstrates how hostile their relation had become.

3. The question of the relation between Buganda and Bunyoro over the lost counties.

The question of the lost counties had been a controversy at the constitutional conferences and the underlying tensions had remained throughout the early years of independence. By 1961, it was depicted that at least 3 /4of the people in Bugangaizi were Banyoro notwithstanding 60 years of Buganda rule. In Buyaga the situation was even more striking with 15 Banyoro for every Muganda – Even Sir Tito Winyi the Omukama of Bunyoro argued that the case of the restoration of the two counties to his kingdom could not be logically denied. The tense relations between the two kingdoms and the aspirations of the peoples of the counties would be underpinned by two developments in 1963 and 1964.

The first was the case of *Joseph Kazaraine v. the Lukiiko*

The applicant Mr Kazaraine was convicted for inciting the people of Buyaga and Bugangaizi not to pay taxes to the Kabaka's government and for obstructing chiefs from carrying out their rightful duties of revenue collection. The issue before the High Court was to whom jurisdiction over the two counties was vested as between the central government and the Buganda government.

Reference was made to the 2nd constitutional conference question had directed that the two counties should vest in the central government. It would obviously follow that the central government was entitled to exercise jurisdiction over the province. However, because it was not clear when exactly the two counties were supposed to come under the jurisdiction of the central government. The court held that Buganda exercises jurisdiction over the counties. It would seem that the courts decision reflected move of a desire not to upset the political set up given the volatile character of the matter and in any event a referendum had been scheduled to resolve the matter.

Kazaraine's case is important for a number of reasons:

1. It underpinned the tension in the relations between Buganda and the two counties.
2. It portrayed the confusion of the 1962 constitution had brought about with respect to an issue that was not resolved in the run up to independence.
3. It demonstrated the problem of the unitary-federal arrangements of the 1962 constitution were likely to cause.

The second development was the referendum on the lost counties in 1964 between 1962-64

the Kabaka government had laboured to justify why the two



counties should remain in Buganda. They presented a number of reasons including;

- i. the undesirability of upsetting the administrative arrangements that had existed for such a long period.
- ii. The **rich** endowment of Buganda of Buganda than that of Bunyoro which meant that the two counties would benefit more under Buganda.
- iii. The benevolence and non-sectarianism character of the Kabaka's rule.
- iv. That the development of the counties had been secure under Buganda rule. Further, there were concerns that the change of administration would adversely affect Buganda land owners in the counties

Nevertheless, the central government went ahead with the referendum which was held on 4th November, 1964. The two counties overwhelmingly voted to return to Bunyoro under the constitution. Kabaka Mutesa II, the then president was supposed to sign the instrument of transfer of the two counties but refused to do so.

Obote as the Prime Minister then put the matter before the National Assembly and subsequently the motion for transfer of the counties was confirmed through the constitution of Uganda. (3rd amendment Act No. 36 of 1964). The Buganda government petitioned to the High Court challenging the constitutionality of the referendum and lost its subsequent appeal to the Privy Council was also dismissed.

The Kabaka's Government V. A. G. of Uganda P.C A & P 56 – 1964

The referendum would mark the final death of UPC – YK alliance following the referendum. There was widespread hostility in Buganda and worsening of relations between the central government and the Buganda government on the other hand.

For Obote and UPC, the referendum acted as a boost as it showed that he could no longer be held at ransom to Buganda's demands, the prevailing political situation was also in UPC's favour. Several KY members of parliament had been persuaded to cross to UPC thereby undermining the strength of KY. Similarly, several members of the opposition DP crossed over including its Secretary General Bail Batalingaya. UPC was therefore stronger than ever to enable central government to control the National Assembly.

In the early years of independence autocratic as well as disrespect for the constitution for the constitution would become a future of governance this was particularly evident in the relation between the executive and other organs of government. Obote's government having the majority in parliament (National Assembly) demonstrated a tendency of the executive to dictate the laws enacted by the National Assembly more significantly though was the disrespect by the executive of the decisions of the independence of the judiciary.

This attitude of the executive towards the judiciary was manifested as early as 1962 in respect of the case of *Jowett Lyagoba v Bakasonga & Others [1963] E.A 57*.

The case concerned the election of the Basoga District Council and the legality in particular of the election of specifically elected members of the council. The issue was whether a resolution by the council and the endorsement by the governors of Uganda conformed to the provision of the 1962 constitution. The matter ultimately also touched on the legality of William Nadiope's election as Kyabazinga. The High Court upheld the challenge to the elections and declared the various persons were unlawfully elected and would have to vacate the offices.

Three months after the court's decisions, the National Assembly enacted the *Busoga Election Validation Act No. 9 1963* which validated the elections and in effect over turned the decisions of the court.

THE 1966 KABAKA CRISIS AND ITS IMPLICATION FOR CONSTITUTIONALISM

The 1966 crisis can be traced to the growing animosity between Buganda government and the central Government in the aftermath of the 1964 referendum on the lost counties and this was also reflected in the disputes before the courts in 1964 and 1965, further the growing suspicions and conspiracies during the period of 1965 and 1966 (including the Kabaka's relations with the P.M, the power struggles in UPC between Ibingira and Obote and the crossing of the floor by opposition MPs ensured that the country had by 1966 become a powder keg ready to explode. That the 1966 crisis occurred was the inevitable consequence of a series of events commencing in early 1960s.

In January 1966, during a session of the National Assembly, a KY member of Parliament Daudi Ocheng alleged that the PM, Obote and his ministers Adoko Nekyon and Felix Onama and Idi Amin were involved in illegal gold trading in the Congo (Zaire). This allegation was made while the PM was on tour in Northern Uganda and upon his return to Kampala he caused the appointment of a judicial commission of inquiry into the matter.

In February during a cabinet meeting in Entebbe, the P.M ordered the arrest of 5 ministers including Ibingira (resulting in the *Ibingira and others case*). In the same month of February 1966, the P.M suspended the 1962 independence constitution, citing that the country had lost stability and that certain individuals intended to overthrow the lawful government of Uganda. The suspension of the constitution resulted in a number of developments:

1. The abolition of the posts of president and V.P
2. Declaration of a state of emergency in Buganda
3. The dismissal of Shaban Opolot as army commander and his replacement by Idi Amin. (Resulting in the case of Opolot v. A.G 1969 (EA).

The 1962 constitution was subsequently abrogated in April 1966 with significant implications:

- i) The abolition of kingdoms in Uganda and in effect the federal and semi federal

status of the kingdoms.

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- ii) Declaration of Uganda as a republic
- iii) The promulgation of the 1966 interim constitution (whose legality was subsequently challenged before the courts) and ultimately the 1967 republican constitution. The reaction to these constitutional developments within Buganda was one of opposition with the Lukiiko passing a resolution in May 1966 for the central government to leave Buganda soil by the end of May 1966. The central government response was to send troops led by Idi Amin to attack the seat of Buganda at Mengo. This resulted in the capture of the major properties of Buganda and the fleeing to exile by the Kabaka where he died in 1969.

IMPLICATIONS OF THE CRISIS FOR CONSTITUTIONALISM

1. The abolition of the kingdoms which followed the abrogation of the 1962 constitution in April 1966. This was later affirmed by article 118 of the 1967 constitution (this article remained in place until it was repealed in 1993 by the NRM government).

Shah v. Uganda 1969 E.A

Shah had a contract with the defunct kingdom of Buganda from which he was to get a commission. With the abolition of the kingdom most of assets and liabilities of the defunct kingdom were inherited by the central government. When Shah made a claim for commissions on contracts entered into with the kingdom of Buganda before its abolition, the central government purported to amend the Local Government act to bar such claims.

2. The declaration of Uganda as a republic with an executive President. This resulted in placing of excessive powers in the president without significant checks and balances which had major ramification for separation of powers in the subsequent years.

The 1967 constitution affected the separation of powers and constitutionalism in a number of instances including the making of the Attorney General a cabinet member as apposed to the 1962 constitution when he wasn't. Further the office of the Director of Public Prosecution (DPP) was brought under the A.G which had not been the case in 1962. This resulted in the politicization of the persecution of opposition leaders.

3. The declaration of a state of emergency initially in Buganda and subsequently throughout the country. This resulted in several instances of arrest and detentions without trial of individuals. This was particularly reflected in the promulgation of the **1966 Emergency Power (Detention) Regulations** which initially applied in Buganda and under which individuals such as Ibingira, Matovu, Lumu etc were detained. This would in itself bear implications for human rights especially the right to personal liberty and in the attitude of the executive to the negation of judicial independence of the courts.

Ibingira case followed the arrest during a cabinet meeting in Entebbe and their detention pending an order of deportation under Deportation Ordinance Cap

46. The case involved a challenge as to the constitutionality of orders under the deportation ordinance unconstitutional as was never expected to apply to citizens of Uganda and lawful orders under the 1962 constitution (S. 19) were never intended to be orders that resulted in the deprivation of personal liberty.

The court of Appeal directed that the matter be remitted to the high court for grant of orders of habeas corpus in order to conform with the decision of the court of Appeal, the government brought the Ibingiras from Karamoja up to Entebbe where they released them but upon stepping out of the airport they were rearrested and detained under the **Emergency Powers (Detention) Regulations** which were then applicable only in Buganda. This resulted in the 2nd Ibingira case in which they challenged their re-arrest and detention as having been undertaken in bad faith by the government and in violation **Art. 35 of the interim 1966**. In the meantime, prior to their re-arrest, the National Assembly had enacted the **Deportation Validation Act** which sought to provide government the immunity against any claim for compensation by Ibingira and others in respect of the habeas corpus proceedings in the first case.

The high court refused to hear on merit, the 2nd case brought by Ibingira and once again the matter went before the E. A court of Appeal that there was absence of bad faith in the government bringing the applicants to Buganda where they were rearrested and that it was the applicant's misfortune to be in an area where the detention regulations applied.

The stance taken by the court in the 2nd case demonstrated the demise of the judicial independence of the courts, with the growing tendencies of the

executive to ignore or nullify decisions of the courts as well as interfere in the operation of the courts. The courts in themselves seemed content to make decisions in favour of the government.

Exparte Matovu 1966

Lumu and others v. Uganda 1966 Re-

Ibrahim 1970

4. It raised the question of the legality of extra-constitutional changes of government in light of the abrogation of the 1962 constitution and the promulgation of the 1966 and 1967 constitution. This question was central to the decision in the case of Exparte Matovu where a challenge was made as to the constitutionality and validity of the 1966 constitution. In the final analysis the question before the courts was whether the events leading to the 1966 constitutional change in the legal order. The court referred to the writings of a prominent scholar Prof. Hans Kelsen who had propounded theories on the extra constitutional changes of a legal order.

Basing on his idea of the constitution as a grand norm, Kelsen argued that norms derive their validity from the grand norm. He argued that an extra constitutional change in the legal order occurred in instances where the change is not contemplated or envisaged by the existing legal order. The change must in itself result in an efficacious government with authority over territory and its people.

In the finality, the validity of norms will derive from the new legal order given that the old one has been legal order continue to exist, this is because their existence and validity is permitted by the new legal order.

The phenomenon of extra constitutional changes in the legal order, has defined a larger part of Uganda's constitutional history particularly in the nature of the enactment of legal notice L/N 1 to usher in a new regime for instance.

- i) Amin regime by L/N 1/1971
Alfred Kisubi v. Uganda (1972) EA
- ii) The UNLF regime and in particular the removal of Prof. Lule ref. to L/N 1 of 1979 considering the case of *Lutakome Kayira & others v. Rugumayo and others*

1979 Constitutional Case No.1.



- iii) The NRM regime and constitutional framework of government in light of L/N 1 of 1986 considered in the cases of *Ssempebwa v. A.G constitutional case No. 1 of 1986*.

Rwanyarare v. A.G 1993 Misc. Application No. 1 1994

Article 3 paragraph 1 of 1995 constitution does it outlaw Kelsen theory of extra constitutional changes of government.

Refer to judicial power and constitutionalism – by Oloka – Onyango.

THE AMIN REGIME OF MILITANT POLITICS AND THE DESTRUCTION OF FORMAL CONSTITUTIONALISM

The 1966 crisis had propelled Amin to the forefront of Uganda's political scene. It was not surprising that upon the departure of president Obote for a commonwealth conference in Singapore, the army announced on 25th January, 1971 that it staged a coup in order to save a bad situation politics that was to characterize Amin's regime. The coup plotters listed 18 reasons of grievances against the Obote government significantly.

1. Violations of human rights including detentions and the lack of political freedoms.
2. The existence of a state of emergency throughout the country since 1969.
3. Corruption, nepotism and tribalism.

The legal instrument that ushered in Amin's regime was a proclamation known as **Legal Notice 1/71**. Its significance as with all the subsequent legal notices 1/79 UNLF era and No. 1/86 (NRM period) was the introduction of a new constitutional legal order in terms of Kelsen theory as well as to give legitimacy to the new regime. The constitution of Uganda was invariably the 1967 constitution read together with L/N 1/71. The legal Notice comprised the following features; it suspended several articles of the 1967 constitution including;

- i) Art. 1 on the supremacy of the constitution. In effect Amin himself became

the supreme law and was no longer subject to the constitution. He did rule by decrees.

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- ii) Art 3 on the amendment of the constitution by parliament which could now be done at will by Amin by way of decrees.
- iii) Art 63 on the powers of parliament to make laws which would be vested in Amin through the promulgation of decrees.
- iv) Chapter 4 on the executive and the qualifications on election of the president who came to be designated as head of state by virtue of the *Constitution (Modification) Decree No. 5 of 1971*.
- v) Chapter 5 on the parliament, its composition and its legislative powers which would now vest in Amin and a council of ministers by virtue of *The Parliament (Vesting of Powers) Decree No. 8 of 1971*.

The immediate period of the inception of Amin's regime was characterized by jubilation in some parts of the country particularly Buganda with the return of Mutesa's body while the other parts particularly Lango and Acholi faced purges. Similarly, all political prisoners were released including Ibingira, Abu Mayanja, Benedicto Kiwanuka and the majority were elected into the primary initial civilian government. Nonetheless within a short period of time, a clamp down on the opposition began to take on the character of a military junta with all the institutions of government, the executive legislature and judiciary manned by the military. Amin introduced a total dictatorship and within a space of two years he had completed into turning the country in an absolute military regime.

During the 2 years, the regime began a clamp down on human rights through the passing of decrees thus although Amin had released political prisoners detained by Obote's government, the first act of his regime was to suspend political party activities which was secured by the *Suspension of Political Party Activities Decree No. 14 of 1971*, which provided in part that "no person was allowed to manage, take part in collect subscription for, raise funds or otherwise encourage political party activities. Public meetings or processions designed with political motives are banned as are the signs, symbols, flags, songs, statements, slogans and names of political parties". Several other laws were passed during Amin's regime to deal with political descent resulting in further violation of human rights. These included;

1. The *Detention (Prescription of Time Limit) Decree No. 7 of 1979* which allowed for indefinite detention throughout trial for 30 days before reasons



are given for detention. The decree also gave powers to arrest and detain individuals to members of the armed forces.

2. The *Newspapers and Publications (Amendment) Decree No. 35 of 1972* which permitted the minister for information to prohibit the publication of any newspaper for an indefinite period if satisfied that it was in public interest. This resulted in the deprivation of the freedom of expression like the banning of the Ngabo newspaper and subsequent disappearance of its editor.
3. *Military Police (Power of Arrest) Decree, 1971* which gave the military powers of arrest to civilians and in effect removed its power from the mainstream police force. By this decree the armed forces and state intelligence forces such as the state research bureau, anti-smuggling unit could carry out arrests, summary trials as well as execute civilians which not only eroded the traditional policing powers but also judicial powers. The implications of this decree were remarked upon by Russell, C.J in the case of *Ephraim Bukenya v. A.G [1972] H.C.B 87*.

In all these aspects of the creation of a totalitarian regime the most drastic was the assault upon the judicial arm of government.

This was secured through the establishment of quasi-judicial organs not traditionally empowered to exercise judicial power over civilians. This was established by trial by *Military Tribunals Decree No. 12 of 1973*.

The implications of the military tribunals decree were to compromise judicial independence of traditional courts and often resulting in the denial of the right to fair trial as in most cases individuals were tried in absentia without legal representation or the right to cross examine witnesses. A similar quasi-judicial organ was the economic crimes tribunal for the offences of smuggling, hoarding, extortion etc.

The erosion of judicial power reached its culmination with the promulgation of *Proceedings Against the Government (Protection) Decree No. 8 of 1972*. It was promulgated following the release of a British citizen on an application of a writ of habeas corpus by Chief Justice Benedicto Kiwanuka. The decree gave government immunity by ousting the jurisdiction of courts to grant relief with

regards to actions for injuries resulting from measures taken to protect the public and security and enforcement of law and order. With the jurisdiction of the courts ousted and the supremacy of the constitution non-existent, the military government was in effect beyond the check of the law.

UGANDA NATIONAL LIBERATION FRONT 1979 – 1980

The period from 1979 can be described as one of a search for constitutional reconstruction. The search was a result of a government formed in exile during the Moshi conference whose main participants were drawn from approx. 22 exile political groups. The main instrument which came to bind the participants consisted of the minutes to the resolution of the conference. The overall body that was ushered in after the fall of Amin's regime was the UNLF which was the umbrella organization of the various political groups associated with the Moshi conference.

The UNLF was made up of distinct organs including;

- i) The National Executive Committee with its chairperson as Prof. Yusuf Lule and vice as Akena P. Ojok. The National Executive Committee subsequently became the executive organ of the UNLF government.
- ii) The National Consultative Committee which was chaired by Prof. Edward Rugumayo and his vice Omwony Ojok. The NCC would constitute the legal organ of the UNLF government.
- iii) The Military Commission which was chaired by Paul Muwanga and his vice Yoweri Museveni.

The UNLF had also established a cabinet while in exile and upon Amin's fall in April 1979 the chairman of the UNLF Prof. Yusuf Lule was sworn in as the 4th president of Uganda. The main constitutional element that ushered in the UNLF government was ***Legal Notice 1/79*** which effectively restored Art. 1 of the 1967 constitution previously suspended under L.N. 1/71.

On the other hand, the legal notice modified chapter 5 of the 1967 constitution to constitute the National consultative council as the legislature body.

The government of Prof. Yusuf Lule was short lived surviving only 68 days. It was faced with internal wrangling and conflicts over ideology and policy and the last straw came about as a result of dispute over ministerial appointment. Some members of the UNLF insisted that all presidential appointments must be ratified by the NCC basing their argument on the premise that this was in accordance with the minutes and resolutions of the Moshi conference.

On the other hand, Prof. Lule argued that the spirit of the Moshi conference had only stipulated that he governs by the 1967 constitution and that the constitution mentioned nothing about ratification of presidential appointments. He therefore argued that as president under the 1967 constitution reinstated as the supreme law of the land, he was not subordinated to the NCC. He therefore organized a cabinet reshuffle in which he transferred Paul Muwanga from ministry of internal affairs to that of labour and replaced him with Andrew Lutakome Kayira. The NCC revolted and in a motion of no confidence, they voted for his removal and subsequent replacement as president with Godfrey Binaisa.

The events surrounding Prof. Lule's removal as president were to result in the 1st constitutional case since 1966. This was the case brought by ***Andrew Lutakome Kayira and others v. Edward Rugumayo and Others*** Constitutional Case No. 1 of 1979.

The petitioners sought to challenge the removal of Prof. Lule as president with regard to its lawfulness under the constitution. The court held;

1. The existing constitutional framework at the time of Prof. Lule's removal was the 1967 constitution as modified by L.N 1/79. Since the L.N did not refer to the resolution of the Moshi conference. They were not part of the constitution of Uganda.
2. The 1967 constitution did not prescribe a procedure for the removal of a president. Therefore, the removal of Prof. Lule as president was done in a manner not contemplated under the constitution and thus amounted to a coup.
3. An inquiry into the lawfulness of the removal of Prof Lule as president would invariably raise the question of the legality of the then existing government of Godfrey Binaisa. And in that regard Acts and Laws undertaken and

enacted by the government. This was a political question into which the courts could not inquire.

The significance of **Kayira's case**

It tested the extent to which Kelsen theory as postulated in *Ex parte Matovu's* case continued to exercise influence in politics and governance in Uganda and the tendency of courts to refer to this theory in order to secure political continuity. After Lule's removal, Binaisa fell into the same trap as he tried to reshuffle Paul Muwanga, Museveni and Oyite Ojok and they removed him and subsequently placed all executive powers in the hands of the military commission led by Muwanga and Museveni. The military commission created a presidential commission comprising of 3 members, 2 of them judges and the 3rd a long-serving civil servant. This body was however merely cosmetic as the real executive power lay with the military commission which would then put in place a process for the holding of general elections and which took place in December 1980.

Law

THE PERIOD OF THE NATIONAL RESISTANCE MOVEMENT 1986 – 1995

The period of the NRM period can be described as one involving the search for a new model of constitutionalism. The NRM came to power on the platform of promising a fundamental change in which it declared that it would discard itself from the previous modes of government. The guiding philosophy of the NRM government was to be found in the 10-point programme which outlined the basic elements of its agenda for political and social economic reconstruction of the country. Amongst this was the restoration of democracy, rule of law and respect for human rights. Elimination of corruption, creation of a self-sustaining and integrated economy.

The major constitutional instrument that ushered in the NRM government was *Legal Notice 1/86*. It retained Art. 1 of the 1967 constitution on supremacy of the constitution. Nonetheless it suspended Art. 3 on the amendment of the constitution. It also suspended Cap. 4 with exceptions of the office of the president. It also modified Cap. 5 and in particular Art 63 by constituting the National Resistance council (NRC) as the legislative organ of the NRM government. The L.N also contained in its schedule a **Code of Conduct** to regulate and govern the operations of the **NRA (army)**. The code of conduct contained basic principles by which the army was to be guided. In effect, the army was for the first time in Uganda's history subjected directly to the constitutional frame work.

F.E Ssempebwa v. A.G Constitutional Case No. 1 of 1986 issue – the passing of legislation was to be by the NRC and not the chairman of NRM.

In terms of constitutionalism, the NRM government has perhaps had the most profound influence on the constitutional framework of government since independence. It is to be said that at its inception in 1986 the NRM was largely a broad-based government embracing a wide spectrum of political ideologies and opinions and was intended to be a transitional system of government. However, by 1995, the NRM had narrowed down in terms of its composition as well as transformed in the manner in which it operated and described itself as a political system. The major changes introduced by the NRM have entailed constitutional structures as the conceptual frame work of government. At the level of institutional structures, the changes included the following;

- i) The inception of resistance councils and committees. The RC system had already been introduced in areas of S. Western Uganda which had come with the control of the NRA as a rebel group upon coming to power; the RC system was introduced throughout the country. Of significance, the RC system transformed the nature and character of local government by breaking the monopoly of the chief thus for the first time, power at the local level was divested from a single individual and placed in a committee or council. Furthermore, the RC system brought about a new system of participatory democracy at the grassroots whereby the local people were involved in the election of their elders from the village to the district levels.

Furthermore, the system also sought to bring about semblance of separation of powers. With the establishment of not only the council and committees which largely exercised legislative and executive powers, but also the resistance council courts which exercised judicial powers.

Resistance Councils and Committees (Judicial Powers) Statute No. 1 of 1987.

It may be said that over the period of time as the NRM entrenched itself, the LC system became more and more like an institutional mechanism for the ruling power as they were now being used to advance the causes of the government. Furthermore, the concept of participatory democracy was limited to L.C 1 and L.C 2 as the other levels of the system was then abused on elections by way of electoral colleges. In addition, elections for the L. Cs were primarily based on quenching which did not effectively promote democratic choice as it gave way to instances of intimidation particularly the women.

- ii) The establishment of the office of the Inspector General of government referred to as the “Ombudsman” in other countries. This was a significant establishment since no other government had previously instituted such an office and it was intended to give effect to the intention of the NRM government to eradicate corruption as stated in its 10-point programme.

The office of the IGG was designed to check on executive excesses (abuse of office) and its mandate included prevention of abuse of office as well as investigation into allegation of corruption, maladministration and abuses of

human rights. Nonetheless, an examination of the operation of the office from 1988 when it was established by the IGG statute up to 1995 when it was transformed into a constitutional body under the 1995 constitution reveals a number of shortcomings of the office. First, the IGG was responsible only to the president and this therefore did not ensure independence of the office in order to effectively carry out its mandate.

Secondly findings and recommendations of the office were never made public.

Thirdly, in the years of its existence, the IGG totally failed to carry out its mandate on the abuse of office.

- iii) Establishment of a Commission of Inquiry into violations of human rights. This was under the chairmanship of Justice Oder and it was mandated to inquire into the violation of human rights since independence up to 1986. In effect, the commission could not inquire into human right violation under the NRM government and its report issued in 1994 does not bear reference to human rights violations in 7 years of the NRM government. In any event, in spite of the commission's report, nobody has been prosecuted for committing human right violations.
- iv) The establishment of a Constitutional Commission. This was established under the *Uganda Constitutional Commission Statute of 1988* under the chairmanship of Justice Odoki. The commission was mandated to collect views country-wide on the future constitutional framework of the country. The result of the commission's work was a draft constitution which was debated before a constituent Assembly in 1994/5.
- v) The Inception of the No-party system of government. The NRM government was founded on the principle of non-partisan politics which stressed the importance of individual merit as the basis of political governance. The NRM government was therefore broad-based and as a result at the very outset, political parties were suspended on the argument that they were largely sectarian and divisive and were responsible for the political turmoil experienced by Uganda since 1962. Initially, the suspension of political party activities was largely seen at the result of a gentleman's agreement to allow the new system of government to operate while incorporating individuals from

the political

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parties. However subsequently with the extension of the NRM period in government 1989, the first steps towards outright suppression of political parties occurred. By the time of the elections for the constituent assembly in 1994, the non-partisan principles of the NRM government had side lined political party activity.

The Constituent Assembly Statute of 1993 specifically provided that election of delegates would be based on the on no-partisan principles of individual merit and therefore no person would canvass for election on the platform of political parties. There was an attempt to challenge this mode of election based on non- partisan principles as a violation of rights of association and assembly.

Rwanyarare v A.G constitutional case No. 1 of 1994 the court rejected his petition on grounds that;

1. Limitations on individual rights were permitted in public interest under the 1967 constitution and that public interest was manifested in the desire to ensure maximum participation in the constitution making process.
2. The C.A which was mandated to promulgate a new constitution was only transitional and in effect the limitation on the rights of association and assembly was for a limited duration.

It should be recognized that the NRM government introduced a significant transformation in the gender relations than any previous government. The question of women's rights and representation was accorded as much constitutional and attention.

The government put in place significant changes in the law in particularly in respect of women representative in NRC but also affirmative action policies in respect of the appointment of women to public office and in significantly the addition of 1.5 to women on admission to tertiary institutions.

QUESTIONS

1. “The provisions of the 1900 Buganda Agreement on the territorial and provincial status of the kingdom and on the recognition of the Kabaka as its nature ruler greatly served to deprive the peoples of Buganda of their independence. These provisions would pose controversy. In the subsequent year of the protectorate.” Discuss this statement in relation to the impact of these provisions on political and constitutional development of the protectorate.

Art. 1 Territorial demarcation i.e jurisdictional extent of the kingdom i.e taxes, revenue, Kabaka’s court, lost counties led to controversy in subsequent years. Joseph Kazaraine v Lukiiko.

Illustrate the controversies in events.

Art. 3 Provincial status – kingdom rank in equal standing with other territories. Effected by the 1902 O.I.C Buganda became part of a big entity yet previously was an independent entity. Throughout the period of 1900-1962, Buganda make attempts to regain independence.

Making Buganda a province yet other areas were clamped protectorate period, it insisted to be treated with special status. Mukwaba’s case Omuwanika’s quotation.

1960 memorandum – Buganda should be granted independence instances of assertion of special status i.e., federal, 1953 proposed reforms and 1955 constitutional monarch.

Art. 6 Recognition of the Kabaka as the nature ruler indirect rule subject the authority of the colonial rule. Nature and status of the Kabaka vis-à-vis col. Authority but how are his powers lost? I.e., over his courts i.e., with non- natives, control over appointment of officers i.e., chief, ministers of nominees i.e., Art

Loss of revenue to col. Government, merged with that of other provinces, distribution of land etc. Kabaka’s loss of politico-military and socio- economic degrading to the character of the Kabaka i.e gun-salute and titles-became a paid servant. Yowasi K Paul 1922

Recognition was conditional i.e upon loyalty and co-operation taken to relate to matters of administration of the kingdom of her majesty's government controversy with Cohen's government. Mukwaba's case.

2. 1902 0-1-C & 1920

Key aspects

- a. Constitutional ideas of individual liberty, freedoms and values. What embraces this
- b. Colonial period
- c. Appreciate constitutional ideas with ref. to the 1902 0-1-C
- d. Whether there was failure to uphold constitutional ideas individual liberty, freedoms and values.
- e. Human rights process three counts; democracy-elections, separation of powers.

What major features of O.I.C impacted on these aspect Election of orgs. of government judiciary, exec. leg. Organs in 1920

Shortcomings of these provisions

Failure to make a distinction between the organs from the beginning. Admn. Structure and how it affects the liberties of the natives e.g., tax payment, creation of native court i.e., did it promote native justice absent of natural justice.

Habeas corpus – first ref. to rights, the king v Ex parte seck 1 deportation – Removal of undesirable natives' ordinance, ordinance of 1908

Absence of a right to a fair trial i.e no right to judicial appeal i.e due process of trial. Binaisa's case 1959

Deportation of the Kabaka – use of the deportation undesirable regulation of 1952. Freedom of assembly disappears, Membership to Kabaka party illegal

Does the repugnancy clause secure human rights or is just emphasis of individualism e.g Gwao ku kilumo Rex v Ankeyo.

Tendency towards inequality, natives tried before native courts.

Trading audience, polices discriminating in education, reception clause.

3. Busulu – Evunyo controversy and crisis

Busulu-Evunyo controversy, Bataka crisis, Political and social economic configuration. What is the Busulu-Evunyo crisis? Rent tribute to be paid on land in Buganda

What is the Bataka crisis? Cultural leaders involved in organizing strikes riots etc.

Origins and causes – Art 15 of Buganda Agreement i.e., land provisions and creation of free new land owners and then charging arbitrary rent, dispossessing Bataka as original land owners and the attempt to recover that.

Mwenge v Migadde implications, significance – bolstered a cash economy unity of production of cotton and coffee.

Would be resolved by 1928 by creation of new laws

- a. Abandonment of a cultural claim and adoption of a new direction reflects
- b. Political and socio-economic relations i.e Asian dominant of trade and commerce trade ordinance of 1939, prohibition of natives from gaining.